

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SPENCER LAWRENCE,

Petitioner

VS.

BREANNA FRANCES DUNCAN LAWRENCE,

Respondent

) Case Number: FDI-25-802150

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD SUPPORT, SPOUSAL SUPPORT AND ATTORNEY FEES;
REQUEST FOR ORDER RE: PROPERTY CONTROL, EXCLUSIVE USE AND POSSESSION OF
COMMUNITY PROPERTY HOME; PAYMENTS OF CARRYING COSTS OF HOME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Spencer Lawrence and Respondent Breanna Lawrence. They share two
minor children: Juliana Hayes Lawrence (DOB: 04/15/22) and Wilder James Lawrence (DOB:
08/12/24).
- 2) On February 4, 2026, Respondent filed a Request for Order seeking child support, spousal
support, and attorney fees. Respondent requests:
 - a) Petitioner pay Respondent guideline child support retroactive to the filing of her
Response to Petition for Dissolution (i.e., 11/07/25);
 - b) Petitioner pay Respondent temporary spousal support retroactive to the date of filing the
Request for Order; and
 - c) Petitioner pay Respondent \$35,000.00 in attorney's fees pursuant to Family Code section
2030.

1 3) On February 4, 2026, Respondent filed an Income and Expense Declaration which provides the
2 following relevant information:

- 3 a) Minor Children: 2
- 4 b) Gross Income: \$9,487.10/month
- 5 c) Married Filing Jointly – 2 exemptions
- 6 d) Other Party's Income: \$36,000.00/month
- 7 e) Union Dues: \$150.02
- 8 f) Mandatory Retirement: \$968.16
- 9 g) Cash/Checking: \$6,861.50
- 10 h) Mortgage Interest: \$2,999.75 (paid by Husband)
- 11 i) Property Taxes: 1,841.33 (paid by Husband)
- 12 j) Expenses: \$27,490.37 (amount paid by others: \$21,441.33)
- 13 k) Attorney Fees Paid: \$19,640.55
- 14 l) Timeshare: 92%
- 15 m) Childcare Expense: \$7,808.00

16 4) On March 10, 2026, Petitioner filed a Request for Order seeking:

- 17 a) Respondent be given exclusive use and possession of the family home located at: 466 19th
18 Avenue, San Francisco, CA 94121;
- 19 b) Respondent be ordered to pay carrying costs associated with the family home (outlined
20 on FL-300, p. 4)

21 5) On May 1, 2026, Respondent filed a Responsive Declaration to Petitioner's Request for Order
22 filed March 10, 2026 in which she asks this Court to deny Petitioner's requested relief.

23 6) On May 1, 2026, Petitioner filed a Responsive Declaration in which he requests:

- 24 a) Order guideline child and spousal support based on calculations provided by his attorney
25 commencing on the date of the hearing (i.e., 05/15/26);
 - 26 b) Deny Respondent's request for retroactivity on basis that he has been paying carrying
27 costs on the family home and has continually supported Respondent and the children;
 - 28 c) Grant his request that Respondent pay all the carrying costs for the marital home;
- 29

- 1 d) Deny Respondent's request for \$35,000.00 in attorney fees, but instead advance
2 \$10,000.00 in attorney fees and costs, subject to reallocation.
- 3 7) On May 1, 2026, Petitioner filed an Income and Expense Declaration which provides the
4 following relevant information:
- 5 a) Gross Income: \$31,442.00/month
6 b) Dividend/Interest Income: \$780.00/average/month
7 c) Married Filing Jointly – 4
8 d) Other Party's Income: \$9,583.00/month
9 e) Health Insurance: \$371.00
10 f) Cash/Checking: \$29,871.00
11 g) Mortgage Interest: \$4,911.00
12 h) Property Taxes: \$1841.00
13 i) Expenses: \$33,316.00
14 j) Child Care: \$6000.00
15 k) Attorney Fees Paid: \$51,300.00 (3 attorneys)
16 l) Timeshare: 50%
- 17 8) On May 1, 2026, Petitioner filed "Petitioner Spencer Lawrence's Statement of Support
18 Calculations," which has been reviewed and considered by the Court.
- 19 9) On May 7, 2026, Petitioner filed "Petitioner's Reply Declaration re: Exclusive Use and Payment
20 of Carrying Costs of The Marital Home," which has been reviewed and considered by the Court.

21 **B. Findings and Order**

- 22 1) Respondent's request for child support is GRANTED in accordance with the XSpouse report
23 attached hereto and incorporated herein. Child support in the amount of \$2691.00 per month,
24 payable by Petitioner to Respondent, shall commence on June 1, 2026. The Court finds Petitioner
25 paid direct support for the minor children from date of separation to the present; therefore, the
26 Court DENIES Respondent's request to set child support retroactive to November 7, 2025.
- 27 2) Respondent's request for spousal support is GRANTED in accordance with the XSpouse report
28 attached hereto and incorporated herein. Spousal support in the amount of \$2852.00 per month,
29 payable by Petitioner to Respondent, shall commence on June 1, 2026. The Court finds Petitioner

1 paid direct support to Respondent from the date of separation to the present; therefore, the Court
2 DENIES Respondent's request that spousal support be retroactive to the date she filed her
3 Request for Order (i.e., February 4, 2026).

4 3) In addition to the child support and spousal support amounts set forth above, Petitioner shall pay
5 Respondent bonus child and spousal support pursuant to the Smith/Ostler bonus table attached to
6 the XSpouse report. Bonus support shall be paid within 10 days of receipt of any bonus amount
7 by Petitioner.

8 4) Both parties shall split any unreimbursed medical costs and childcare costs related to employment
9 with 60% allocated to Petitioner and 40% allocated to Respondent.

10 5) In light of the child and spousal support orders made herein, Petitioner is prohibited from seeking
11 *Watts* charges and *Epstein* credits from Respondent for her exclusive use and possession of the
12 family home from the date of separation through May 31, 2026.

13 6) Respondent's request for Family Code section 2030 attorney's fees and costs is GRANTED in the
14 amount of \$35000.00. The Court finds there is a significant disparity of access to funds. The
15 Court further finds Respondent has need and that Petitioner has the ability to pay both parties fees
16 and costs. \$35000.00 is reasonable and necessary.

17 7) Petitioner's request that Respondent be given exclusive use and possession of the family
18 residence located at 466 19th Avenue, San Francisco, California 94121 is GRANTED.

19 8) Petitioner's Request that Respondent be ordered to pay the carrying costs associated with 466 19th
20 Avenue, San Francisco, California is GRANTED. If Respondent is unable to cover the carrying
21 costs associated with her exclusive use and possession, the family home shall be placed on the
22 market for sale immediately.

23 9) Counsel for Respondent shall prepare the Findings and Order After Hearing and include as an
24 attachments form FL-342.

25 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
26 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
27 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
28 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
29 proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures		Cash Flow			
#of children	0	2	2026				Guideline	Proposed
% time with NCP	49.99 %	0.00 %					25424	25872
Filing status	MFS->	<-MFS	GUIDELINE		Comb. net spendable			
# exemptions	3	1	Nets(adjusted)		Percent change		0%	2%
Wages+salary	31442	9487	Father	19417	Father			
Self-employed income	0	0	Mother	6007	Payment cost/benefit		-5544	-5316
Other taxable income	780	0	Total	25424	Net spendable income		13874	14101
TANF+CS received	0	0	Support		Change from guideline		0	228
Other nontaxble income	0	0	Addons	0	% of combined spendable		55%	55%
New spouse income	0	0	Guideln CS	2691	% of saving over guideline		0%	51%
401(k) employee contrib	0	0	S.Clara SS	2852	Total taxes		12805	12805
Adjustments to income	0	0	Total	5544	Dep. exemption value		0	0
SS paid prev marriage	0	0			# withholding allowances		0w	0w
CS paid prev marriage	0	0			Net wage paycheck		18599	18599
Health insurance	0	0			Mother			
Other medical expense	0	0			Payment cost/benefit		5544	5764
Property tax expense	1841	0			Net spendable income		11550	11771
Ded interest expense	4911	0	Proposed		Change from guideline		0	220
Charitable contributions	0	0	Tactic 9		% of combined spendable		45%	45%
Misc tax deductions	0	0	CS	2589	% of saving over guideline		0%	49%
Qual bus income ded	0	0	SS	2727	Total taxes		2362	1914
Required union dues	0	150	Total	5316	Dep. exemption value		0	0
Mandatory retirement	0	968			# withholding allowances		0	0
Hardship deduction	0 *	0 *	Saving	448	Net wage paycheck		6532	6532
Other GDL deductions	0	0	Releases	2				
Child care expenses	0	0	Released to Mother					

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Father	2691	Father	2691	Father
	49 - 51	0	0	0	Father	1009	Father	1009	Father
	49 - 51	0	0	0	Father	1682	Father	1682	Father

Time: 15:13:44

Superior Court of California
County of San Francisco

Date: 05/12/26